

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 09/10/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Franke – Trust (2024 – 01435677)	MOTION TO CORRECT ORDER Petitioner Janie L. Mulrain’s Motion to Correct Order on Petition for Approval of First and Final Account, etc. (ROA 65) is GRANTED. Mulrain, the former successor trustee of the Franke 1994 Family Trust, dated September 1, 1004, as amended and restated on December 14, 1998, June 8, 2004, and February, 2008, (the Trust) seeks an order correcting a misstated date and amount in the order issued February 25, 2026 (ROA 45). The motion is unopposed. In October 2024, Mulrain filed a petition (ROA 2) seeking approval of a first and final account as well as her resignation and appointment of a successor trustee. The first and final account referenced in the petition covered the period December 12, 2023 through September 30, 2024 and showed an ending balancing of included an end property balance of \$3,029,601.25. In November 2025, Mulrain filed a third supplement to the petition (ROA 29) including a supplemental accounting covering the period October 1, 2024 through October 31, 2025 and showing an ending property balance of \$3,001,884.91. On December 30, 2025, the petition was approved as supplemented. (ROA 36.) The submitted and executed order, however, reflects the time period and the amount shown in the original petition rather than the time period and amount reflected in the third supplement. The motion seeks to correct that error. The unopposed motion shows proper proof of service and is GRANTED. Mulrain is directed to submit the corrected order attached as Exhibit A to the Declaration of Jeany A. Duff for the court’s signature. Moving party to give notice.